

Amendment No. 2 to SB2346

White
Signature of Sponsor

AMEND Senate Bill No. 2346*

House Bill No. 2475

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 49-5-413, is amended by deleting subsection (e) and substituting instead the following:

(e)

(1) The department of education, the state board of education, state colleges or universities for a training school maintained by the state college or university pursuant to § 49-8-105, private colleges or universities for a training school maintained by the private college or university pursuant to § 49-2-105, LEAs, public charter schools, and private schools shall not hire or retain, and the state board of education shall not grant a license, reactivate an expired license, restore a revoked license, or grant a temporary teaching permit to, an individual found by the department of children's services to have committed child abuse, severe child abuse, child sexual abuse, or child neglect pursuant to title 37. The department of children's services shall not report an individual or employee as a perpetrator unless the department of children's services has first determined that the due process rights of the individual or employee were either offered but not accepted or fully exhausted or concluded, pursuant to the department of children's services rules and pursuant to state and federal law.

(2) An individual who is currently employed with, or has been conditionally offered employment with, the department of education, the state board of education, a state college or university for a training school maintained

by the state college or university pursuant to § 49-8-105, a private college or university for a training school maintained by the private college or university pursuant to § 49-2-105, an LEA, a public charter school, or a private school and has ever been found by the department of children's services to have committed child abuse, severe child abuse, child sexual abuse, or child neglect, must be offered due process rights. Once the due process rights of the individual or employee have either been offered but not accepted, or have been fully concluded and the finding upheld, the department of children's services must disclose such finding to the department of education, state board of education, state college or university, private college or university, LEA, public charter school, or private school.

(3) If an individual is currently employed with, or has been conditionally offered employment with, the department of education, the state board of education, a state college or university for a training school maintained by the state college or university pursuant to § 49-8-105, a private college or university for a training school maintained by the private college or university pursuant to § 49-2-105, an LEA, a public charter school, or a private school and the department of children's services has ever found the individual to have committed child abuse, severe child abuse, child sexual abuse, or child neglect, but the due process rights of the individual or employee have not yet been offered or are still pending, then the department of children's services must conduct an emergency file review to determine if the individual poses an immediate threat to the health, safety, or welfare of children. If the emergency file review results in a finding that the individual poses an immediate threat to the health, safety, or welfare of children, then the department of children's services must disclose the threat to the department of education, state board of education,

state college or university, private college or university, LEA, public charter school, or private school.

(4) If an individual is currently employed with, or has been conditionally offered employment with, the department of education, the state board of education, a state college or university for a training school maintained by the state college or university pursuant to § 49-8-105, a private college or university for a training school maintained by the private college or university pursuant to § 49-2-105, an LEA, a public charter school, or a private school and the department of children's services has commenced an investigation of the individual that has not yet been concluded, then the department of children's services must conduct an emergency file review to determine if the individual poses an immediate threat to the health, safety, or welfare of children. If the emergency file review results in a finding that the individual poses an immediate threat to the health, safety, or welfare of children, then the department of children's services must disclose the threat to the department of education, state board of education, state college or university, private college or university, LEA, public charter school, or private school.

(5) If due process proceedings have been stayed due to a pending criminal charge against an individual who is currently employed or has been conditionally offered employment by the department of education, the state board of education, a state college or university for a training school maintained by the state college or university pursuant to § 49-8-105, a private college or university for a training school maintained by the private college or university pursuant to § 49-2-105, an LEA, a public charter school, or a private school, then the department of children's services must notify the department of education, state board of education, state college or university, private college or university, LEA, public charter school, or private school of the pending criminal charge.

(6) The department of education, the state board of education, and the department of children's services, in consultation, shall develop a procedure whereby state colleges or universities for a training school maintained by the state college or university pursuant to § 49-8-105, private colleges or universities for a training school maintained by the private college or university pursuant to § 49-2-105, LEAs, public charter schools, and private schools may submit to the department of children's services the names of current employees and individuals who have been conditionally offered employment with the state college or university, private college or university, LEA, public charter school, or private school to determine if the employee or individual has been found by the department of children's services to have committed child abuse, severe child abuse, child sexual abuse, or child neglect, or to pose an immediate threat to the health, safety, or welfare of children. Upon submission by the state college or university, private college or university, LEA, public charter school, or private school of the names of current employees and individuals who have been conditionally offered employment, the department of children's services must timely provide the state college or university, private college or university, LEA, public charter school, or private school with the information in subdivisions (e)(2)-(5).

(7) The department of education, the state board of education, state colleges or universities for a training school maintained by the state college or university pursuant to § 49-8-105, private colleges or universities for a training school maintained by the private college or university pursuant to § 49-2-105, LEAs, public charter schools, and private schools shall not hire or retain, and the state board of education shall not grant a license, reactivate an expired license, restore a revoked license, or grant a temporary teaching permit to, an individual whose name has been placed on the state's vulnerable person's registry, the

state's sex offender registry, or a federal registry similar to this state's vulnerable person's registry or this state's sex offender registry.

(8) The department of children's services may promulgate rules to effectuate the procedures described in subdivisions (e)(2)-(5). The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(9) As used in this subsection (e), "private school" has the same meaning as defined in § 49-6-3001(c)(3).

SECTION 2. Tennessee Code Annotated, Section 71-3-503, is amended by adding the following as a new subsection:

(g)

(1) A child care agency that is exempt from licensing pursuant to subsection (b) may request that the department of children's services conduct a review of an employee or potential employee of the exempt child care agency to determine whether the employee or potential employee has a record of perpetrating the abuse or neglect of children, as indicated in the records of the department of children's services.

(2) The department of children's services shall create a form for an exempt child care agency to request a review pursuant to this subsection (g).

(3) The department of children's services shall conduct a review requested in accordance with this subsection (g).

(4) The department of children's services may promulgate rules to effectuate this subsection (g), including rules to identify the information the department of children's services must release to an exempt child care agency after a review is conducted pursuant to this subsection (g) to ensure compliance with all relevant privacy laws. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3. Tennessee Code Annotated, Title 37, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) The Tennessee Court Appointed Special Advocates Association (CASA) may request that the department of children's services conduct a review of an employee, a volunteer, a potential employee, or a potential volunteer of CASA to determine whether the employee, volunteer, potential employee, or potential volunteer has a record of perpetrating the abuse or neglect of children, as indicated in the records of the department of children's services.

(b) The department of children's services shall create a form for CASA to request a review pursuant to subsection (a).

(c) The department of children's services shall conduct a review requested in accordance with this section.

(d) The department of children's services may promulgate rules to effectuate this section, including rules to identify the information the department must release to CASA after a review is conducted pursuant to this section to ensure compliance with all relevant privacy laws. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 4. For purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.